

KATHRYN N. NESTER (13967)
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Attorney for Defendant, Tyler Robinson

IN THE FOURTH JUDICIAL DISTRICT, PROVO DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**RULE 8 DECLARATION
OF KATHRYN N. NESTER**

Case No. 251403576

Judge Tony F. Graf Jr.

Pursuant to Rule 8 of the Utah Rules of Criminal Procedure I hereby certify that:

1. I have been in the practice of law, with an emphasis on criminal defense work, for the last 33 years.
2. I have previously appeared as lead or co-counsel in nine (9) aggravated murder or felony murder cases in state courts or capital murder cases in federal courts. Two (2) of those cases proceeded to final verdict. See Addendum A
3. I have tried 8 felony cases to verdict in the past four years. See Addendum B
4. I have sufficient time and resources to dedicate to the representation of the defendant charged with capital crimes.
5. I have attended 28 hours of CLE devoted exclusively to the defense of individuals facing capital charges, 0 of which were attended within the last year.
6. I will attend an additional CLE devoted exclusively to the defense of individuals facing capital charges within the next year.
7. I consider myself to be qualified at the trial level in representing a criminal defendant in capital proceedings.

DATED this 25th day of September, 2025.

/s/ Kathryn Nester

ADDENDUM A
CAPITAL/HOMICIDE EXPERIENCE

Client	Case Number	To Verdict
Joseph McGriggs	Copiah County Circuit Court, MS 2008-0065	Yes
Paul Evans, Jr.	Jones County Circuit Court, MS 2001-3-KRIA	Yes
Kathleen Nelson	US District Court for Southern District of Mississippi 3:03-cr-30	No
Francis McCard	US District Court for District of Utah 2:18-cr-66	No
Mark Isaac Snarr	US District Court for Eastern District of Texas 1:13-cv-724 HABEAS CASE	No
John Earnest	US District Court for the Southern District of California 3:19-cr-01850	No
Lane Ryan Bronson	US District Court for the Northern District of Oklahoma 4:21-cr-21-009	No
Marielle Tramanie Smith	US District Court for the Eastern District of Oklahoma 24-CR-167	No

ADDENDUM B
FELONY TRIALS TO VERDICT IN LAST 4 YEARS

Client	Case	Date
Mitchell Solstad	Third Judicial District, Salt Lake County 211902008	7/12-7/13/2023
Matthew Baker	District of Utah 2:20-cr-301	12/12-12/15/2022
Trenton Powell	District of Idaho 4:21-cr-290	4/25-5/2/2023
Edgar Agustin	Third Judicial District, Salt Lake County 221907821	10/16-10/17/2024
Zachary Bassett	District of Utah 2:23-cr-39	9/10-9/24/2024
Daniel Bodon	Second Judicial District, Davis County, Farmington 231701185	4/9-4/12/2024
Kirk Moore	District of Utah 2:23-cr-10	7/7-7/11/2025 (dismissed after 5 th day of trial)
Christopher Nelson	Third Judicial District, Salt Lake County 221902379	8/7-8/8/2024

CERTIFICATE OF SERVICE

I hereby certify that on this 25th day of September, 2025, I caused a true and correct copy of the foregoing **RULE 8 DECLARATION OF KATHRYN NESTER** to be filed via electronic filing, which provides automatic notice to the prosecution of record.

/s/ Kathryn Nester